

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

ALEX RODRIGUEZ,

Plaintiff,

-against-

**THE CITY OF NEW YORK; P.O.
ZACHARY WIENCLAW; P.O.
JONATHAN MARTINEZ; SGT.
MICHAEL TANNAZZO,**

Defendants.

Index No.:

SUMMONS

Plaintiff designates Kings County as
the place of trial

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is the location where the claims arose.

Dated: New York, New York
April 17, 2023

Rickner PLLC

By:



Stephanie Panousieris

14 Wall Street Suite 1603
New York, New York 10005
Phone: (212) 300-6506
Fax: (888) 390-5401
Attorney for Plaintiff

TO:

THE CITY OF NEW YORK
New York City law Department
100 Church Street
New York, New York 10007

P.O. ZACHARY WIENCLAW (Tax ID No. 965616)
P.O. JONATHAN MARTINEZ (Tax ID No. 958881)
SGT. MICHAEL TANNAZZO (Tax ID No. 953466)
83rd Precinct
480 Knickerbocker Avenue
Brooklyn, New York 11237

**SUPREME COURT OF THE STATE OF NEW YORK
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VERIFIED COMPLAINT

Plaintiff Alex Rodriguez, by his attorneys at Rickner PLLC, complaining of the Defendants, alleges, upon information and belief and personal knowledge:

NATURE OF THE CASE

1. This is a civil rights action brought against the City of New York and members of the New York City Police Department (“NYPD”), who violated Plaintiff’s rights under the Constitution of the United States and the Constitution of the State of New York, and committed torts actionable under the common laws and statutes of the State and City of New York.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of Plaintiff’s rights under the Fourth and Fourteenth Amendments to the Constitution of the United States, Plaintiff’s rights under Article 1, Section 12 of the Constitution of the State of New York, and the common laws and statutes of the State and City New York.

3. An award of costs and attorneys’ fees is authorized pursuant to 42 U.S.C. § 1988.

4. Pursuant to New York State General Municipal Law § 50-e, Plaintiff filed a timely Notice of Claim with the New York City Comptroller and the Comptroller designated the claim as number 2021PI009497.

5. Plaintiff appeared for a hearing under New York State General Municipal Law § 50-h on July 7, 2022.

6. Plaintiff's claims were not adjusted by the New York City Comptroller's Office within the period of time provided by statute.

7. Venue is properly laid in the Supreme Court of the State of New York, County of New Kings, because the Plaintiff's claims arose in the County of Kings.

8. Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

PARTIES

9. Plaintiff was, at all relevant times, a resident of the State of New York.

10. Defendant the City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department that acts as its agent in the area of law enforcement and for which it is ultimately responsible.

11. Defendant the City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

12. Defendant Police Officer Zachary Wienclaw (Shield No. 26413, Tax ID No. 965616) (hereinafter "Weinclaw") was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New

York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.

13. Officer Weinclaw is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

14. Officer Weinclaw is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

15. Defendant Police Officer Jonathan Martinez (Shield No. 20330, Tax ID No. 958881) (hereinafter “Martinez”) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.

16. Officer Martinez is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

17. Officer Martinez is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

18. Defendant Sgt. Michael Tannazzo (Shield No. 1985, Tax ID No. 953466) (hereinafter “Tannazzo”) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.

19. Sgt. Tannazzo is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

20. Sgt. Tannazzo is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

21. Weinclaw, Martinez, and Tannazzo are referred to collectively as the “Individual Defendants.”

22. At all times relevant herein, the Individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of NYPD and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

23. At all relevant times, the Individual Defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

THE VIOLATION OF PLAINTIFF’S CIVIL RIGHTS

24. During the early morning hours of January 19, 2022, Plaintiff was parked near Central and Bleeker in Brooklyn in a 2003 Honda Accord he purchased from his brother a few days before.

25. The vehicle had a temporary Texas license plate affixed to the rear of the car.

26. Plaintiff was pulled over by Wienclaw and Martinez, who approached the car and stated that the temporary plate was not visible and the car’s window tints were too dark.

27. Plaintiff handed the officers a copy of the temporary plate information, along with the title and his valid driver’s license.

28. Wienclaw and Martinez were able to confirm that the temporary tag was lawfully issued for Plaintiff’s vehicle and that he was the owner of the car.

29. The DMV check also confirmed that the vehicle was properly registered.

30. Rather than issuing a standard traffic ticket for the obstructed license plate and tinted windows, Wienclaw and Martinez decided to maliciously over-charge Plaintiff with felony possession of a forged instrument—despite confirming that the temporary plate was legally obtained—simply because Plaintiff also had a copy of the tag stored in his glove compartment, which he provided to the officers when they told him the rear tag was not visible.

31. The officers knew that these facts could not constitute the felony offense under Penal Law § 170.25, which states: “A person is guilty of criminal possession of a forged instrument in the second degree when, with knowledge that it is forged and with intent to defraud, deceive or injure another, he utters or possesses any forged instrument of a kind specified in section 170.10.”

32. When Sgt. Tannazzo arrived on the scene and was briefed about the basis for the arrest, which Weinclaw and Martinez confirmed was based on the copy of the temp plate which Plaintiff had stored inside of his glove compartment, Tannazzo allowed the officers to proceed with the custodial arrest, absent probable cause that a felony offense was committed.

33. Plaintiff was transferred to the 83rd precinct, where he was denied a Desk Appearance Ticket, improperly fingerprinted and photographed, held in a cell, and then transported to central booking, where he remained until the Kings County District Attorney’s Office declined to prosecute either the VTL violations or the erroneous felony charge.

THE INJURIES TO PLAINTIFF

34. This action seeks damages on behalf of Plaintiff for the emotional pain and suffering, loss of liberty, and injuries to his person, that Plaintiff was forced to endure as a consequence of the Individual Defendants’ decidedly wrongful actions.

35. The Individual Defendants' actions were wanton, reckless, and malicious, as well as in blatant disregard of Plaintiff's civil rights, and as such the Individual Defendants are liable for punitive damages, as is the City of New York under the doctrine of *respondeat superior*.

36. All of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

**FIRST CLAIM FOR RELIEF:
FALSE ARREST UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

37. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

38. The Individual Defendants initiated over-charged and arrested Plaintiff without probable cause.

39. By virtue of the aforementioned acts by the Individual Defendants, Plaintiff was deprived of civil rights guaranteed under the Fourth Amendment to the United States Constitution, and the Individual Defendants are liable to Plaintiff for damages under 42 U.S.C. § 1983.

40. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

41. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

**SECOND CLAIM FOR RELIEF:
PROSECUTION WITHOUT PROBABLE CAUSE UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

42. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

43. The Individual Defendants initiated a prosecution against Plaintiff without probable cause and that prosecution resolved in a complete dismissal of the charges, in favor of Plaintiff.

44. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiff was deprived of civil rights guaranteed under the Fourth Amendment to the United States Constitution to be free from unreasonable or unlawful searches and seizures, and the Individual Defendants are therefore liable to Plaintiff for damages under 42 U.S.C. § 1983.

45. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

46. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

**THIRD CLAIM FOR RELIEF:
FALSE ARREST AND FALSE IMPRISONMENT AGAINST
THE INDIVIDUAL DEFENDANTS AND THE CITY OF NEW YORK**

47. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

48. Plaintiff was arrested, handcuffed, and detained in the absence of probable cause by the Individual Defendants.

49. That at all times hereinafter mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.

50. Plaintiff was conscious of the confinement and did not consent to such confinement.

51. Plaintiff's arrest is *void ab initio* because Plaintiff was taken to a precinct or otherwise taken into custody, rather than being given a summons or other process outside of custody, in violation of New York Criminal Procedure Law § 150.20.

52. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

53. As a result of the above tortious conduct, the Individual Defendants are liable for punitive damages.

54. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**FOURTH FOR RELIEF:
ASSAULT AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

55. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

56. The Individual Defendants intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, and that such acts caused apprehension of such contact in the Plaintiff.

57. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

58. As a result of the above tortious conduct, the Individual Defendants are liable for punitive damages.

59. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**FIFTH CLAIM FOR RELIEF:
BATTERY AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

60. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

61. The Individual Defendants intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner struck Plaintiff and handcuffed him without his consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.

62. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

63. As a result of the above tortious conduct, the Individual Defendants are liable for punitive damages.

64. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**SIXTH CLAIM FOR RELIEF:
MALICIOUS PROSECUTION AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

65. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

66. The Individual Defendants initiated a prosecution against Plaintiff without probable cause, and with malice, and that prosecution resolved in a complete dismissal of the charges, in favor of Plaintiff.

67. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

68. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

69. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**SEVENTH CLAIM FOR RELIEF:
N.Y.C. ADMIN. CODE §§ 8-801 TO 8-807 AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

70. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

71. Plaintiff's right to be free from unreasonable searches and seizures was violated by the conduct of the Individual Defendants.

72. The City of New York is liable as the employer of the Individual Defendants under New York City Administrative Code § 8-803(b).

73. Qualified immunity is no defense to this claim.

74. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

75. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

**EIGHTH CLAIM FOR RELIEF:
NEGLIGENT TRAINING, SUPERVISION, DISCIPLINE, AND RETENTION
NINTH AGAINST THE CITY OF NEW YORK**

76. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

77. The City of New York negligently trained, supervised, disciplined, and retained trained the Individual Defendants. The acts and conduct of the defendants were the direct and

proximate cause of injury and damage to Plaintiff's rights under the Constitution of the United States and the Constitution of the State of New York, and committed torts actionable under the common laws and statutes of the State and New York.

78. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

79. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

80. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**TENTH CLAIM FOR RELIEF:
VIOLATION OF ARTICLE I, § 12 OF THE NEW YORK STATE CONSTITUTION
AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

81. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

82. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to the following rights:

- a. freedom from unreasonable search and seizure of her person and property;
- b. freedom from arrest without probable cause;
- c. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- d. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and

e. freedom from deprivation of liberty without due process of law.

83. As a direct and proximate result of defendants' deprivations of plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution.

84. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

85. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

86. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

WHEREFORE, Plaintiff demands the following relief jointly and severally against all of the Individual Defendants, as well as the City of New York:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
April 17, 2023

Rickner PLLC
By: 
Stephanie Panousieris

14 Wall Street, Suite 1603
New York, New York 10005
Phone: (212) 300-6506
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Attorney for Plaintiff

TO:

THE CITY OF NEW YORK
New York City law Department
100 Church Street
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83rd Precinct
480 Knickerbocker Avenue
Brooklyn, New York 11237

ATTORNEY'S VERIFICATION

I, Stephanie Panousieris, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

1) I am the attorney of record for the Plaintiff.

2) I have read the enclosed Verified Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs are based upon facts, records, other pertinent information contained in my files.

3) This verification is made by me because Plaintiff does not reside in the County where counsel maintains offices.

Dated: New York, New York
April 17, 2023

Rickner PLLC

By:



Stephanie Panousieris

14 Wall Street, Suite 1603
New York, New York 10005
Phone: (212) 300-6506
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